

2:00 PM

LINE 3

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

DEFENDANT BAYWOOD CAPITAL CORPORATION'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF MICHAEL WILLIAMS; REQUEST FOR SANCTIONS

TENTATIVE RULING:

On June 17, 2026, defendants Baywood Capital Corporation filed this motion. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed there had been no tolling.

The court GRANTS defendant Baywood Capital Corporations motion for an order deeming Defendant's Requests for Admission, Set Three, to plaintiff Michael Williams (RFA).

On May 5, 2026, defendant served the RFA on Michael Williams and no responses have been received or extensions granted. (Babajanov Decl., ¶¶ 2-4.) If there are no responses, there are no time limits to bring a motion and there is no need to informally resolve the dispute. (*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 8:1371, 8:1372 (TRG June 2026 update).)

Discovery sanctions are mandatory when there is no response. (Code Civ. Proc., § 2033.280, subd. (c).) Thus, the court grants discovery sanctions in the amount of \$250.00 as a reasonable amount. Since defendant filed the same motion against each of the plaintiffs, the court finds that sanctions of \$250.00 against each plaintiff is reasonable.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order shall attach the requests for admissions.

2:00 PM

LINE 4

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

PLAINTIFF'S MOTION FOR PETITION TO QUASH MONETARY SANCTIONS, OBJECTION TO PETITION FILED BY DAVID J. STREZA

TENTATIVE RULING:

On June 29, 2026, plaintiff Lori Williams filed a motion for petition to quash monetary sanctions, objection to petition filed by David J. Streza. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court DENIES the motion. The motion does not comply with the procedural rules because it does not identify the nature for the order being sought and the grounds for the motion, or include a memorandum of points and authorities. (Cal. Rules of Court, rules 3.1110(a),(b). 3.1113.) It is unclear what monetary sanctions that Williams seeks to quash and there is no petition filed by David Streza.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
